

PROFESSIONAL SERVICES AGREEMENT

RFP-11-13 PIONEER PARK CONCESSION OPERATION

This Agreement is made this _____ day of _____, 20____ by and between the City of Cheyenne ("CITY") of the City of Cheyenne, Wyoming ("CITY"), and Chicago Dog House, LLC ("FIRM").

WITNESSETH

WHEREAS, the CITY manages, operates, maintains and controls the Parks & Recreation Department facilities, including the Pioneer Park Baseball Field Concession and Restroom Facility.

WHEREAS, the CITY is in need of services to provide services at the Pioneer Park Field Concession and Restroom Facility.

WHEREAS, the FIRM is qualified to provide the services desired by the CITY and has submitted a proposal dated February 7, 2013 for the above desired work, a copy of which is attached hereto as "Exhibit A" and incorporated by this reference;

WHEREAS, the FIRM also agrees to provide services and information to the CITY necessary to complete the work described in the Request For Proposals dated February 7, 2013, a copy of which is attached hereto as "Exhibit B" and incorporated by this reference; and

WHEREAS, the CITY desires to retain the FIRM under the terms and conditions hereinafter set forth.

NOW, THEREFORE, in consideration of the mutual promises and covenants herein contained, it is agreed by and between the CITY and the FIRM as follows:

1. SCOPE OF SERVICES:

a. The FIRM agrees to provide professional services for the CITY as set forth in "Exhibit A" and "Exhibit B" attached hereto and incorporated herein by this reference.

b. The CITY may order major changes in the scope or character of work, either decreasing or increasing the amount of the FIRM'S services. In the event that such changes are ordered, the FIRM shall be entitled to additional compensation for additional work performed. Additional compensation for major changes shall be determined in accordance with Paragraph 2 of this Contract, but in no event shall the CITY be liable for payment unless the amount of such additional compensation shall first have been agreed to in writing by the CITY. In the event that major changes are ordered pursuant to this Section, the schedule for progress and completion in Section 3 of this Contract and compensation in Section 2 shall be adjusted by negotiation between the FIRM and the CITY.

2. COMPENSATION:

a. The FIRM shall perform the services set forth in Exhibits "A" and "B." For the ability to provide these services the FIRM shall pay the City 12% of the gross sales from the concession stand. Such payment shall be made on or before July 15 for any sales that occur during the months of April, May and June and by November 15 for any sales that occur during the months of July, August, September and October of the current year. Failure to make such a payment may result in the loss of the ability to utilize the Pioneer Park Concession and Restroom Facility to provide concession services and/or the termination of this contract.

3. TERM AND EFFECTIVE DATE:

This Agreement shall commence on the date the last required signature is attached hereto and shall continue in full force and effect until October 31, 2015. This contract may be extend upon mutual agreement of the parties for a maximum of two, one year extensions, unless this Agreement is earlier terminated pursuant to Sections 20 and 21 herein.

4. MODIFICATION:

Any changes, modifications, revisions or amendments to this Agreement which are ordered pursuant to Section 1 herein or which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.

5. INDEMNIFICATION / HOLD HARMLESS:

The FIRM agrees to indemnify, hold harmless and defend the CITY and the CITY from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders

to the extent caused by (1) the FIRM's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the FIRM, or its employees or subcontractors in the performance of this Agreement. The FIRM acknowledges that it may incur a financial obligation to the CITY and the CITY pursuant to the terms of this paragraph.

6. GOVERNMENTAL IMMUNITY:

The CITY and the CITY and their officials and employees do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws, except to the extent necessary solely for the enforcement of the terms and conditions of this Agreement as between the parties. Further, the CITY and the CITY fully retain all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.

7. INSURANCE:

The FIRM shall provide the CITY with proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. The FIRM shall provide the CITY with proof of workers' compensation or employer's liability insurance coverage.

Additional Insurance Information

The FIRM shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of worker's compensation and shall provide the CITY with a copy of the endorsements.

The FIRM shall provide the CITY with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon the FIRM to immediately notify in writing the CITY of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, the FIRM shall provide the CITY with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The CITY's failure to request or review such policies, endorsements, or certificates shall not affect the CITY's rights or the FIRM's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

8. GOVERNING LAW, JURISDICTION and VENUE:

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

9. COMPLIANCE WITH LAWS:

The FIRM shall comply with all applicable federal, state and local laws, rules and regulations in the performance of this contract. The FIRM's attention is directed to the fact that all applicable Federal and State laws, municipal ordinances, and the rules and regulations of all authorities having jurisdiction over design and construction of the project shall apply to the Agreement throughout, and they will be deemed to be included in the Agreement the same as though herein written out in full. Other Laws and Regulations apply which are not included herein, and are within the FIRM's duty and responsibility for compliance therewith.

10. NONDISCRIMINATION:

The FIRM shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. §27-9-105 et seq.), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101 et seq., and the Age Discrimination Act of 1975 and/or any properly promulgated rules and regulations thereto and the FIRM assures that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against in connection with the award and performance of this Agreement on the grounds of age, sex, race, creed, color, national origin, ancestry, religion, pregnancy or qualifying disability. The FIRM further assures that it will include the language of this paragraph in all agreements associated or connected in any way with this Agreement and the work thereunder. If the FIRM, its employees or subcontractors are found in violation of these requirements, this Agreement may be terminated. The FIRM shall be responsible for all such non-compliance and shall defend, hold harmless and indemnify the CITY therefrom.

11. ALCOHOL AND CONTROLLED SUBSTANCE POLICY:

In compliance with the Drug-Free Workplace Act of November 1988, the CITY has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by CITY employees. All parties under contract with the CITY, including the FIRM and its employees and subcontractors, are required to comply with the provisions of the CITY'S Alcohol and Controlled Substance Policy for drug and/or alcohol usage on CITY property or other sites occupied by the FIRM while performing duties and responsibilities of this contract. It is the responsibility of the FIRM to familiarize itself with the requirements of this policy and to inform all its employees and subcontractors of those requirements and to insure their compliance therewith. If the FIRM, its employees or subcontractors are found to be in violation of this policy, this contract may be terminated.

12. INDEPENDENT CONTRACTOR:

At all times during the term of this Agreement, the FIRM shall be considered an independent contractor. Neither the FIRM nor any one employed by it shall represent, act, purport to act or be deemed to be the agent, representative, employee or servant of the CITY.

13. CONFIDENTIALITY:

To the extent allowed by law, the CITY and the FIRM shall treat as confidential and not disclose to others information (including technical information, experience or data) regarding either party's plans, programs, plants, processes, products, costs, equipment, operations, or customers which come within the knowledge of the parties, without in each instance securing the prior written consent of the other party, unless such disclosure is required by law or legal process. However, nothing shall prevent either the FIRM or the CITY from disclosing to others or using in any manner information which either party can show (a) has been published or has become part of the public domain other than by acts of the FIRM or the CITY; (b) has been furnished or made known to the FIRM or the CITY by third parties without restrictions on its disclosure; or (c) was in either party's possession prior to the disclosure thereof by the CITY or the FIRM to each other. Neither the FIRM nor the CITY shall be restricted from releasing information in response to a subpoena, court order, or legal process, but, in the event such disclosure becomes necessary, the disclosing party shall notify the other party of the demand for information at least seven (7) days prior to disclosing such information so that the other party may take any and all steps provided by law to prevent the release of such information.

14. FIRM'S RESPONSIBILITIES:

The FIRM shall be responsible for all terms and conditions as set forth in this Agreement and the professional quality, technical accuracy, and timely completion of all services as set forth in Exhibits A and B and all changes in the scope or character of the work made pursuant to Sections 1 and/or 4 herein. The FIRM shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies. The FIRM shall perform all work in a professional manner in conformance with industry standards. The Firm shall maintain a diary or log book, recording hours on the job site, weather conditions, data relative to questions of extras or deductions, list of visiting officials and representatives of manufactures, fabricators, suppliers and distributors, daily activities, decisions, observations in general, and record detailed results and procedures of tests conducted.

15. NOTICES:

Any notice, correspondence or billing required to be given by the terms of this Agreement shall be delivered by hand, or delivered by mail, postage prepaid, to the addresses of the respective parties stated below:

CITY: Todd Feezer, Assistant Director
CITY of Cheyenne, Parks & Recreation Department
2101 O'Neil Avenue, Room 302
Cheyenne, WY 82001

FIRM: Leonard Torres
Chicago Dog House, LLC
113 Derr Avenue
Cheyenne, WY 82007

16. INTELLECTUAL PROPERTY AND WORK PRODUCT

a. All work (preliminary, draft, and final) performed by the FIRM under this Agreement is the property of the CITY. The CITY will own any and all data, documents, working papers, computer programs, photographs, and other material produced by the FIRM pursuant to this Agreement, and the FIRM hereby assigns and transfers to the CITY any and all intellectual property rights for such materials. The FIRM will provide the CITY with copies of all such materials including, without limitation, any research memoranda prepared under this Agreement. Under no circumstances, including pending disputes between the CITY and the FIRM, will the FIRM fail to deliver possession of said documents and materials to the CITY upon demand.

b. The FIRM agrees to indemnify, pay the defense costs of, and hold the CITY harmless from any and all claims, demands, costs, liabilities, losses, expenses and damages (including attorneys' fees, costs, and expert witnesses' fees) arising out of or in connection with this Agreement that sound in an intellectual property claim (including but not limited to patent, copyright, trademark, trade name, or trade secret infringement).

c. This Section specifically survives the expiration or termination of this Agreement.

17. CONFLICT OF INTEREST:

In entering this Agreement, the FIRM covenants that it presently has no interest, and shall not acquire any interest, direct or indirect, financial or otherwise, which would conflict in any manner or degree with performance of the services hereunder. In addition, the FIRM covenants that in the performance of this contract, no subcontractor or person having such an interest shall be employed. The FIRM certifies that no one who has or will have any financial interest under this contract is an officer or employee of the CITY.

18. ACCEPTANCE NOT WAIVER:

The CITY'S approval of drawings, plans, specifications, reports, and incidental work or materials furnished hereunder shall not in any way relieve the FIRM from responsibility for the technical accuracy of the work. The CITY'S approval or acceptance of, or payment for, any services shall not be construed to operate as a waiver of any of the CITY'S rights under this Agreement or any of its legal rights under statute and common law arising out of the performance of this Agreement.

19. DEFAULT:

Each and every term and condition herein shall be deemed a material element of the Agreement. In the event either party shall fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

20. REMEDIES:

a. In the event a party declares the other party in default hereof, said party declaring default shall notify the defaulting party in writing and such defaulting party shall be allowed a period of fifteen (15) days to cure said default. In the event that the default remains uncorrected, the party not in default may elect to: (a) terminate the Agreement and seek damages; (b) treat the Agreement as continuing and require specific performance; or (c) avail itself of any other remedy at law or equity.

b. In the event the FIRM fails to strictly perform in accordance with this Agreement, the CITY may elect to make good such deficiencies and charge the FIRM therefore.

21. TERMINATION:

The CITY may, by written notice to the FIRM, terminate this Agreement in whole or in part by giving the FIRM fifteen (15) days written notice. Upon receipt of such notice, the FIRM shall:

a. Discontinue all services affected (unless the notice directs otherwise); and

b. Deliver to the CITY representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, accumulated by the FIRM in performing this Agreement, whether completed or in process. In event of termination, the CITY will pay the FIRM for accepted work done as of the date of termination.

22. WAIVER:

The waiver by either party of any term, condition or covenant, or breach of any term, condition or covenant, shall not constitute a waiver of any other term, condition or covenant, or breach

thereof.

23. SEVERABILITY:

If any provision, section, subsection, sentence, clause, or phrase of this Agreement is invalidated by any court of competent jurisdiction, such holding shall not affect the validity of the remainder of this Agreement, which shall continue in full force and affect.

24. SUCCESSORS AND ASSIGNS:

All the terms, conditions, and provisions herein shall inure to the benefit of and be binding upon the parties hereto and their respective successors and assigns.

25. ASSIGNMENT:

Neither party shall assign this Agreement without prior written consent of both parties. Any delegation or assignment shall not operate to relieve either party of its responsibilities hereunder. However, nothing in this Agreement shall prohibit the FIRM from subcontracting to a qualified subcontractor.

26. THIRD PARTY RIGHTS:

The Parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement, and shall inure solely to the benefit of the parties to this Agreement. The parties to this Agreement intend and expressly agree that only the parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this Agreement, or to bring action for breach of this Agreement. This paragraph is not intended nor shall it be construed to waive any of the parties' immunities.

27. ENTIRE AGREEMENT OF THE PARTIES:

This Agreement, to include Exhibits A and B, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

REST OF THIS PAGE INTENTIONALLY LEFT BLANK

IN WITNESS WHEREOF, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

The effective date of this Agreement is the date of the last signature affixed to this page.

CITY OF CHEYENNE, WYOMING

BY:

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

Date: _____

FIRM

BY: Leonard Torres

Title: Chicago Dog House, LLC - Owner

Date: _____

Address: 113 Derr Avenue, Cheyenne, WY 82007



Leonard Torres

113 Derr Ave , Cheyenne, WY 82007
Cell: 307.286.8325 : chicagodoghouse05@gmail.com

Feb 7, 2013

Todd Feezer
Parks and recreation department
2101 O'Neal Avenue
Cheyenne, WY 82001
307.638.4356

Dear Todd Feezer,

I'm contacting you in regards to the operation position at Pioneer Park Concessions Snack Shack, advertised in the on 2.07.13 proposal. I am very interested in further particulars. As a huge fan of sports, I was really excited to see this posting for concessions. I feel like I'm a great match for the job and a great fit with your organization.

My relevant qualifications include my business in concessions doing events such as super day, celtic festival, hispanic festival, and Fridays On The Plaza. Also of note is my most recent position as owner operator for Chicago dog House. In this role, I'm responsible for all operations. And during my tenure, I have been in business for 8 years which is still looking to grow as a company.

With my skill set and proven track record, I can be a valuable addition to City Parks and Recreation and a public benefit.

Thanks in advance for your time. I look forward to working with Parks and Recreation Department.

Best Regards,

Leonard Torres 307.286.8325 chicagodoghouse05@gmail.com I am ready to put my expertise to work for the benefit of your organization and the company.

Regards,

Operations team

Leonard Torres

- A. Owner /operator with eight years of concession experience.
- B. Started in 2005 in Cheyenne Wyoming having the best concessions.
- C. Assuring proper quality food control on a timely manner.

Concessions/Snack shack operations area

- A. Viewed the blue prints along with a walk thru and layout of the operations area.

Scope of work

Chicago Dog House along with the operator are very committed to the services and complying to meet or exceed to all health, fire, city, state regulations.

Refernces:

Tom Ellsberry

4720 Ranch House Way

Cheyenne, Wy 82001

Business associate

307.221.2824

Tom co-chairman of the Kiwanis, which started 6 years ago, The Rib Fest conjunction with Kiwanis club in Cheyenne with top rib vendors across the nation which Chicago Dog House has worked alongside with for 4 years. Tom is well aware what is needed from all vendors in one of Cheyenne's largest events.

Pete Muenzer

10423 Holland Way

Westminster, Co 80021

Profession | Colleague

Comment [p1]:

720.402.8476

Pete is a 13 year colleague. Pete knows it takes 5 years to establish a very well business succeed and is not surprised because of the high quality brand Vienna Beef I use, Pete has no doubt I have the ability to provide as a concessionaire.

910

Jack Keller

910 Apple Wood Court

Ft. Lupton, Co 80621

ICEE salesman

303.503.8345

Jack is my salesman for 2 years, Jack has the knowledge of the qualifications I have to run the operation as he services big established Businesses with products along with Chicago Dog House.

Project Specific Information

Reviewed exhibits A, B, C, and the Professional Service Agreement.

Other Information

Chicago Dog House has provided the best brand for food and fountain beverages also proposes a 3-5 year contract with City Park and Rec.

DOGS

WYOMING STYLE DOG
(chili, onions, jalapenos)

\$3.75

CHICAGO STYLE DOG

\$3.75

CHILI DOG w/CHEESE

\$3.75

JUMBO DOG

\$4.00

SANDS

PHILLY CHEESE STEAK

\$6.00

CHICAGO STYLE ITALIAN BEEF

\$6.00

CHILI CHEESEBURGER

\$4.50

CHEESEBURGER

\$4.00

SIDES

SUPER NACHOS

\$5.00

CHILI CHEESE FRITOS

\$4.00

NACHOS W/ JALAPENOS

\$3.75

CHIPS

\$1.00

COTTON CANDY bag/stick

\$4.00 / \$3.00

SAUSAGES

BRATWURST

\$4.00

POLISH SAUSAGE

\$4.00

ITALIAN SAUSAGE

\$4.00

TOPPERS

Giardiniera Sport peppers

Sweet Peppers Kraut

Jalapenos Relish

Tomatoes Onions

CHILI \$1.50 xtra CHEESE \$1.50 xtra

DRINKS \$2



pepsi



BOTTLED WATER

\$2.00

GATORADE

\$2.00

ICEE

\$3.00



MONSTER

\$3.00

REQUEST FOR PROPOSAL

RFP-11-13

for

**Pioneer Park Concessions/Snack Shack Operation
for**



CITY OF CHEYENNE, WYOMING

February 7, 2013

Issued by:

**Parks & Recreation Department
City of Cheyenne, Wyoming**

Proposal Statements due:

2:00 PM

February 21, 2013

at:

City Purchasing Office RM 104

Attn: Todd Feezer, Assistant Director, Parks & Recreation Department

**2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 638-4356**

PROJECT NAME: PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS

The City of Cheyenne, Wyoming, hereby requests proposals for the above named operation. Proposers shall be individuals or professionals experienced with concession/snack shack operations. If the proposer is a non-resident business entity, the firm shall also be registered with the Secretary of State of Wyoming to do business in Wyoming.

Proposers shall submit, in writing, information outlined under the PROPOSAL FORMAT section. The submittal shall address the selection criteria as listed herein and such other data as may be useful in evaluating the ability of the firm to perform the work required. Proposals should be short and concise.

Information contained in the Request For Proposal and in the proposal submitted by the winning proposer shall be incorporated by reference into and be considered part of the contract between the City and the proposer selected.

A. PROPOSAL SUBMITTAL

To be considered, proposals must be received by the CITY at the following location before 2:00p.m. MST on Tuesday, February 21, 2013 at:

City of Cheyenne - Purchasing Office
Attn: Todd Feezer, Assistant Director, Parks & Recreation Department
2101 O'Neil Avenue, Rm. 104
Cheyenne Wyoming 82001

Any proposal received after that time shall not be considered, but shall be returned unopened to the proposer. Telegraphic or fax submittals shall not be considered.

Proposers are advised that, consistent with provisions of the City of Cheyenne's policy for the procurement of professional services, the CITY shall utilize a two-step process for selecting a consultant through this solicitation. This process dictates that proposers divide their submittals into two parts: a *technical proposal* and a *payment proposal*. Proposers shall submit their technical proposals and price proposals simultaneously on the date and time specified in this RFP, sealed in separate, clearly marked envelopes as follows:

Technical Proposal: Proposers must submit one (1) original of the technical proposal bound with all required attachments, one (1) electronic copy of the technical proposal in a sealed envelope clearly marked with the following information:

- (a) the phrase: "**PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS TECHNICAL PROPOSAL**"
- (b) the date specified for receipt of proposals; and
- (c) the name and address of the proposer.

Payment Proposals: Proposers must submit one (1) original of the payment proposal (this is the amount, if any, the proposer intends to pay the City of Cheyenne for the ability to provide the referenced operation) attached to the technical proposal in a separate sealed envelope clearly marked with the following information:

PROJECT NAME: PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS

(a) the phrase: **"PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS PAYMENT PROPOSAL "**

(b) the date specified for receipt of proposals; and

(c) the name and address of the proposer.

Proposers are advised that proposal content and completeness are most important, and that clear and effective presentations are preferred, with unnecessarily elaborate, decorative or extraneous materials discouraged. Each section within the proposal shall be clearly defined for easy reference.

All blank spaces must be filled in (e.g., the number "0", the word "None" or the words "Not Applicable" or "NA" are to be inserted, where appropriate, on the forms).

B. PROPOSAL FORMAT

The proposer shall use the following format.

Technical Proposal (Envelope #1)

1. Concession/Snack Shack Operations Team – The proposer should identify the operations team members and their positions on the team and briefly outline the responsibilities and experience of each member with in the proposed operation.
2. Concessions/Snack Shack Operations Area - The proposer should show briefly and concisely their familiarity with the operations area.
3. Scope of Work - All proposers will commit at a minimum to the services outlined in "Exhibit A – Scope of Work" and be prepared to enter into the proposed Professional Services Agreement, draft copy attached. The City and proposer may supplement the draft Scope of Work with any additional work or clarification of work that is determined necessary for the successful completion of the project.
4. References: List at least three (3) references that would provide information regarding the proposer's qualifications to provide the referenced operation. Use additional sheets if more than three references are provided. Provide the following information for each reference: Name, Address, Relationship, Telephone # and an explanation of their knowledge of the proposer's ability to provide the referenced operation.
5. Project Specific Information - The proposer should carefully review "Exhibit A Scope of Work," "Exhibit B Allowable Operations," "Exhibit C Sample Schedule" and the attached Professional Services Agreement. These exhibits provide background information and directions necessary for proposal preparation.
6. Other Information - Any additional information the proposer feels would be useful to the committee in evaluating the proposal should be placed in this section.
7. Proposal Submittal Checklist: - "Attachment B-1" must be completed and signed by the proposer and attached to the outside of the technical proposal envelope to ensure completeness of submittal.

PROJECT NAME: PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS

Any proposal not submitted in this format shall be deemed to be non-responsive and shall not be considered further by the CITY. The signer of the proposal must declare that the person(s), companies or parties interested in the contract as principals are named therein; that it is, in all respects, fair and in good faith without collusion or fraud; and that the signer of the proposal has the authority to bind the principal proposer.

Payment Proposal (Envelope #2)

1. Cover Letter - Identify the proposer's name, mailing address, telephone number and contact person(s). The letter must be signed by the proposer, and should be limited to two (2) pages. A proposal submitted by a consortium, joint venture or other team shall not be considered responsive unless it is established that all principals of any such consortium, joint venture or team are jointly and severally responsible for the performance of any contract awarded pursuant to this RFP. A proposal shall not be considered responsive if the proposal is submitted by any business entity which has limited financial resources and which is a wholly owned subsidiary or affiliate of another business entity.
2. Provide a complete description of the amount, if any, the proposer intends to pay the City of Cheyenne for the ability to provide the referenced operation. In the event that the proposer does not intend to pay any amount, the proposer must provide a detailed description why no payment will be made including anticipated use of the proceeds/profits in relation to the Public Benefit from the referenced operation.

C. PRE-PROPOSAL CONFERENCE

A pre-proposal conference will be at the P&R Administration Office, 2101 O'Neil Ave., Room 302, on Thursday February 14, 2013, beginning at 2:00 p.m. MST, for the purpose of responding to questions or request for clarification regarding the contents of this RFP. Proposers are strongly encouraged to attend the pre-proposal meeting. Weather permitting a site visit will follow the pre-proposal conference.

D. ADDENDA

Any and all proposers may make inquiries in writing to CITY at any time prior to noon on February 15, 2013. Any written question regarding the meaning or interpretation of the RFP, work scope, specifications, etc., must be submitted to the CITY prior to the above specified date. All clarifications given to any prospective proposer shall be similarly furnished to all prospective proposers in summary form as an addendum to this RFP. No technical assistance shall be given by the CITY to any proposer in preparation of its proposal.

Written inquiries shall be directed to:

City of Cheyenne - Parks & Recreation Department
Attn: Todd Feezer, Assistant Director
2101 O'Neil Avenue, Rm. 302
Cheyenne Wyoming 82001

PROJECT NAME: PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS

Any or all changes, additions, or clarifications in connection with this RFP shall be issued by the CITY in the form of written addenda. Each proposer must sign the "Acknowledgment of Receipt of RFP Packet, Sample Agreement and Addenda" form "Attachment B-2" and submit the executed form with its proposal. Oral comments, responses and/or representations shall not be binding upon the CITY.

E. DISCLOSURE OF PROPOSAL CONTENTS

All proposals and supporting documents, except such information that discloses proprietary or financial information submitted in response to qualification statements, becomes public information held in custody of the CITY after the proposal submittal date given in this RFP. The CITY assumes no liability for the use or disclosure of technical or cost data submitted by any proposer.

Nevertheless, if a proposal contains information that the respondent does not want disclosed to the public, or used for any purpose other than the evaluation of the proposal, all such information must be indicated with the following or similar statement:

"The information contained on pages _____ shall not be duplicated, used in whole or in part for any purpose other than to evaluate the proposal provided; that if a contract is awarded to this firm as a result of the submission of such information, the City of Cheyenne shall have the right to duplicate, use or disclose this information to the extent provided in the contract or to the extent provided by law. This restriction does not limit the City of Cheyenne's right to use the information contained herein if obtained from another source."

All such nondisclosure items specified in the proposal shall be subject to disclosure as provided in "The Wyoming Public Records Act" or as otherwise provided by law.

E. PROPOSAL PROTEST PROCEDURES

Proposers are advised that the CITY shall administer any protest initiated by a protesting party concerning this solicitation in the following manner:

1. The protesting party may submit a written protest prior to the due date for Proposals stated elsewhere in this RFP. If the protesting party did not know and could not have known of the facts giving rise to such protest prior to the proposal opening, the protest shall be submitted within three (3) calendar days after the protesting party acquires actual knowledge of the facts giving rise thereto.
2. Upon receipt of a timely written protest, the CITY shall not proceed further with the solicitation or contract award until all administrative remedies have been exhausted, or until the CITY's Director of Purchasing and/or the CITY's Attorney determines that a contract award without delay is necessary to protect the interests of the CITY.
3. Timely protests shall be reviewed by the CITY's Director of Purchasing, who shall consider all facts, technical support, and justification submitted by the protesting party, and in a timely manner render a decision on behalf of CITY as to the validity of the protest and the disposition thereof. The CITY's Director of Purchasing may request additional information from the protesting party to clarify or support its protest, in which case such information shall be supplied in writing by the

PROJECT NAME: PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS

protesting party within three (3) calendar days following the CITY's request. After the City's Director of Purchasing renders a decision on the protest, the matter shall proceed to the City's Governing Body for the award of a contract to the successful proposer.

G. SELECTION PROCESS

Each responsive proposal received by the CITY shall be evaluated in a consistent manner as described in this subsection. A responsive proposal is one which complies with all material aspects of the solicitation, both as to the method and timeliness of submission, and as to the substance of any resulting contract. Prospective proposers are advised to submit all required forms, attachments, and other information as requested in the RFP. Proposals that do not comply with all the terms and conditions of the solicitation may be rejected as non-responsive.

As noted above, the CITY shall utilize a two-step evaluation process for selecting a Consultant through this solicitation. The two-step process dictates that proposers make submittals in two parts: a *technical proposal* and a *payment proposal*. It is the intent of the CITY to first evaluate all technical proposals in order to establish a quantitative ranking of the proposals exclusive of price. The CITY shall use this process to identify one or more proposers who are considered to be best qualified to perform the work required by the CITY.

All responsive technical proposals will be reviewed by an evaluation committee comprised of Parks & Recreation, Engineering, and other personnel to be selected by the CITY. A weighted evaluation methodology shall be used to rank each proposal, using the evaluation criteria and relative weighting indicated on "Attachment A-1".

After review of the technical proposals, the best qualified firms will be invited to participate in oral interviews with the evaluation committee for the purpose of clarifying and confirming the assertions made in their proposals. A weighted evaluation methodology shall be used to rank each proposal, using the evaluation criteria and relative weighting indicated on "Attachment A-2".

At the end of the interview process, the CITY shall then unseal the highest ranked proposer *payment proposal* and initiate negotiations toward a final contract containing a detailed scope of work and budget. If negotiations with the first selected proposer are unsuccessful, negotiations with the second highest ranked proposer will be pursued, followed by the third proposer, if necessary to secure a contract. In the event the CITY is unable to secure an Agreement with any of the qualified proposers, this procurement may be terminated at the CITY's option.

The CITY reserves the right to delay making an award as necessary to permit proper study and analysis of all proposals received, to split award on proposals, to reject any or all proposals received, and to make a pre-award survey to determine the capability of any or all proposers. The CITY reserves the right to reject any or all proposals if it believes there is a sound business reason for doing so, and to negotiate matters of Consultant performance, project schedule and other issues not directly related to the proposal price submitted prior to awarding a contract. The CITY further reserves the right to cancel the procurement process at any time during the evaluation process if it appears that the proposals received are not suitable for any reason whatsoever.

PROJECT NAME: PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS

H. SELECTION PROCESS SCHEDULE

February 7 & 14, 2013	Legal Notice Posted in Paper
February 14, 2013	Pre-proposal Meeting
February 21, 2013	Proposals Due
February 22, 2013	Review Committee selects Proposers for Interviews
February 26-28, 2013	Interviews (as necessary)
February 28, 2013	Review Committee completes Final Selection.
March 2, 2013	Professional Services Agreement finalized with successful Proposer
March 6, 2013	Agreement placed on City Council Agenda
March 11, 2013	City Council Meeting No.1: Agreement referred to Finance Committee
March 18, 2013	Agreement discussed in Finance Committee
March 25, 2013	City Council Meeting No. 2: Agreement approved/disapproved.
April 1, 2013	Notice-to-proceed issued by City if Agreement approved

PROJECT NAME: PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS

ATTACHMENT A-1

FIRST ROUND CONSULTANT PROPOSAL EVALUATION
CRITERIA WEIGHTING

<u>CRITERIA</u>	<u>DESCRIPTION</u>	<u>WEIGHT</u>
Applicable Experience	Quantity and type of experience with concession/snack shack operations.	<u>20</u>
Approach to Project	Methods of identifying, understanding and addressing operations, including significant issues i.e.; concession/snack shack operations, schedules, health department requirements, fire department inspections, safety, etc.	<u>15</u>
Technical Expertise	Expertise dealing with the technical issues important to a concession/snack shack operations.	<u>15</u>
Adequate Resources	Sufficient available staff and equipment to provide a concessions/snack shack operation.	<u>5</u>
Jobsite Proximity	Physical location relative to operations site in order to minimize response time to operation needs.	<u>10</u>
Performance on Past Operations/Reference Check	Success on previous operations in the way of consistency, quality and inspections.	<u>15</u>
Familiarity with Project	Knowledge of concessions/snack shack operations background, needs, goals, limitations, and special considerations.	<u>15</u>
Proposal Quality	Readability, completeness, brevity, and organization of the proposal.	<u>5</u>
.	TOTAL	<u>100</u>

RFP-11-13

PROJECT NAME: PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS

ATTACHMENT A-2

SECOND ROUND CONSULTANT PROPOSAL EVALUATION
(INTERVIEWS)
CRITERIA WEIGHTING

INTERVIEW		SCORE	COMMENTS
Completeness	15		
Method of presentation	15		
Professionalism	15		
Enthusiasm for project	15		
Applicable experience	20		
Familiarity with operation	20		
TOTAL	100		

List reasons you have for recommending a particular firm:

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List reasons you have for rejecting a particular firm:

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General comments/clarifications/questions:

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Date: _____

RFP-11-13

PROJECT NAME: PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS

**ATTACHMENT B-1
PROPOSAL SUBMITTAL CHECKLIST**

This form must be completed and returned with the proposal submittal.

Attachment	Description	Proposer's Initials	CITY's Initials
B-1 <u>Envelope #1</u>	Proposal Submittal Checklist <u>Technical Proposal</u> Sealed Envelope w/required info. on front Signed Cover Letter Concession/Snack Shack Operations Team Concession/Snack Shack Operation Area Scope of Work References Project Specific Information Other Information Proposal Submittal Checklist		
B-2	Acknowledgment of Receipt of RFP Packet, Sample Agreement and Addenda		
<u>Envelope #2</u>	<u>Payment Proposal</u> Sealed Envelope w/required info. on front Signed Cover Letter Detailed Description		

Name of Proposer: _____

Signature of Proposer: _____

Date: _____

RFP-11-13

PROJECT NAME: PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS

ATTACHMENT B-2

**ACKNOWLEDGMENT OF RECEIPT
OF RFP PACKET, SAMPLE AGREEMENT AND ADDENDA**

The undersigned hereby acknowledges receipt of the City of Cheyenne Request for Proposals (RFP) packet for **PIONEER PARK CONCESSIONS/SNACK SHACK OPERATIONS**, including: Sample Professional Services Agreement, Scope of Work, Compensation Schedule, Project Schedule, and the following addenda issued during the procurement process.

Addendum #1: _____ dated _____

Addendum #2: _____ dated _____

Addendum #3: _____ dated _____

Failure to acknowledge receipt of the proposal packet, sample Agreement, and all addenda may cause the proposal to be considered non-responsive to this solicitation.

Name of Proposer: _____

Signature of Proposer: _____

Date: _____

EXHIBIT A**SCOPE OF WORK****A. Project Description**

The City of Cheyenne, Wyoming is seeking qualification statements and service proposals from individuals or professionals experienced in the area of concessions/snack shack operations to address the City of Cheyenne's intent to provide concession/snack shack operations at the Pioneer Park Baseball Field. The specific nature of the scope of work for the project is outlined in this Request for Proposals (RFP). Proposers responding will be evaluated and a short list developed for formal interviews to be conducted at a later date. Such proposals shall be submitted to the City of Cheyenne's Purchasing Office, 2101 O'Neil Ave. Cheyenne, Wyoming by 2:00 p.m. February 21, 2013.

I. Introduction and Background

The Pioneer Park Concession/Snack Shack is currently under construction. The new facility will be available for operations beginning April 1, 2013. The facility will consist of the following:

- ✓ 280 sq. ft. Concession Area
 - Three (3) compartment industrial sink
 - Ansul hood system
 - Stainless steel counter top
 - Serving window with an air curtain
 - Hand washing sink
 - Entry door.
- ✓ 32 sq. ft. Storage Area
- ✓ Mechanical Room/Janitor's Closet
 - Floor sink.
- ✓ Family, Men's & Women's Restrooms
- ✓ Equipment, fixtures and furniture beyond the items listed are the sole responsibility of the concession/snack shack provider.

The Pioneer Park Concession/Snack Shack is located at the Pioneer Park Baseball Facility. This baseball facility hosted approximately 160 games between April 1 and September 26, 2012. The majority of the games played occurred between in May (32), June (56) and July (42). Typical users of this facility include Senior Babe Ruth, American Legion Post 6, Cheyenne Mustang Baseball, Adult Baseball and Cheyenne Grizzlies Baseball.

II. Operation Objectives

The objectives of this RFP are:

- ✓ Secure a qualified concession/snack shack provider.
- ✓ Provide a quality, consistent concessions/snack shack operation for baseball games and tournaments scheduled at the Pioneer Park Baseball Field.

III. Scope of Services

The minimum scope of services related to this operation includes the following: [The Proposer is invited to provide additional steps or work tasks as necessary or appropriate to assist in the completion of the objective.]

A. Menu & Pricing

- ✓ Provide a reasonably priced and varied menu for consumption by participants, spectators and visitors to the Pioneer Park Center.
- ✓ Eliminate the sale of shelled items (i.e. sunflower seeds, peanuts) and chewing gum.
- ✓ Beer sales are excluded. All beer sales must be applied for and approved through the City of Cheyenne Clerk's Office, Police Department and the Parks & Recreation Department. The request for beer sales shall be made in writing to the Parks & Recreation Department Administration Office.

B. Consistent Opening/Closing

- ✓ Provide an operation that with a minimum of a 48 hour notice opens ½ hour prior to each scheduled game/tournament.
- ✓ Provide an operation that provides services through the 2nd to last inning of the last scheduled game each day.
- ✓ Provide an agreement where the contract can be voided in the event the stand is not open for a certain number of games.

C. Inspection Compliance & Permitting

- ✓ Provide an operation that complies with all applicable laws and regulations.
- ✓ Provide an operation that ensures all required City, County and State fees are paid and current for concession operations.
- ✓ Provide an operation that complies with and passes all required inspections.

D. Reduction of Waste

- ✓ Reduce the number of individually packaged/wrapped items (i.e. straw wrapper, Jolly Rancher® candies).

E. Other Items

- ✓ Selected provider will be responsible for restroom maintenance during open hours. This includes restocking toilet paper and paper towel dispensers, emptying garbage cans and relining, mopping as needed and unclogging toilets as needed. All supplies will be provided by the City of Cheyenne Parks & Recreation Department.

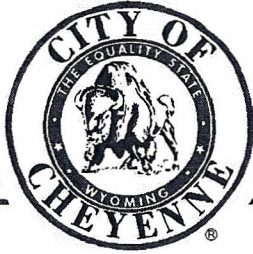
IV. Materials, Supplies, Utilities & Information to be Provided by the City of Cheyenne

The following items will be provided, if needed, to the selected proposer by the CP&R Office:

Restroom Supplies (toilet paper, paper towels, garbage can liners)
Water & Electricity
Facility Schedules

B. Payment Proposal Objectives

The objectives of this proposal is to either receive compensation to ensure that the City of Cheyenne is not adversely affected by the referenced operation (i.e. incurring the cost of electricity for an entity to profit) or to ensure that profits/proceeds from the referenced operation provide a general public benefit.



Fire Prevention Bureau

2101 O'Neil Ave. #304, Cheyenne WY 82001
307-637-6311



Cheyenne Parks&Recreation
Date 01-16-2013

Cooking under hoods that are equipped with a fire suppression system. All fire suppression systems must have a current inspection tag from a licensed system contractor. All cooking that creates grease laden vapors must be contained within the confines of the hood. A type K extinguisher with current tag must be located within 30 ft of the hood system. All systems need to be inspected by a member of the Cheyenne Fire /Rescue Prevention Bureau before the facility can be used.

904.11.5 Portable fire extinguishers for commercial cooking equipment.

Portable fire extinguishers shall be provided within a 30-foot (9144 mm) travel distance of commercial-type cooking equipment. Cooking equipment involving vegetable or animal oils and fats shall be protected by a Class K rated portable extinguisher.

904.11.6.4 Extinguishing system service.

Automatic fire-extinguishing systems shall be serviced at least every 6 months and after activation of the system. Inspection shall be by qualified individuals, and a certificate of inspection shall be forwarded to the fire code official upon completion.

Lt. Dale Hammock
Cheyenne Fire/Rescue
Prevention Bureau

Pioneer Park Field Schedule - April 2012

Sunday	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday
1 Mustang Varsity Double Header TBA	2	3 Mustang Pract 3pm	4	5	6 Good Friday	7
8 Easter Sunday	9 Mustang Pract 5:30p	10 Mustang Pract 5:30p	11 Mustang Pract 5:30p	12 Mustang Pract 5:30p	13 Mustang Pract 5:30p	14
15 Adult Scrimmage Game 1pm	16 P6 Practice 3:30pm	17 P6 Practice 3:30pm	18 P6 Practice 3:30pm	19 P6 14s Game 5:30p	20 P6 Practice 3:30pm	21 Mustang Pract. 10am
22 P6 Practice TBA	23 Mustang Pract 5:30p	24 P6/Must 14s Game 5:30p	25 Mustang Pract 5:30p	26 P&R Black Out - 3P Mustang Pract 5:30p	27 P6 Practice 3:30pm	28 P6 Prep Gm 1p/3p
29 P6 Practice TBA	30 P&R Black Out - 3P P6 Practice 3:30pm					

*3/30 - Mustangs, Practice (3:30p)

*3/31 - Post 6, Practice (2:30p)

Pioneer Park Field Schedule - May 2012

Sunday	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday
		1 Mustangs 14s Game 5:30p	2 P6 Practice 3:30pm	3 P6 Practice 3:30pm	4 P6 Practice 3:30pm	5 P6 Varsity Game 12p/2:30p
6 Adult Gm 9a P6 Prep Gm 1p/3p Adult Gm 6p	7 P&R Black Out - 3P Mustang Pract 5:30p	8 Mustang Pract 5:30p	9 Pepsi Pitch, Hit & Run 5p-7p	10 Mustang Pract 5:30p	11 Mustang Pract 5:30p	12 Mustang Pract 10a Mustang JV 11a/1p
13 Mustang Pract 10a Mother's Day	14 P&R Black Out - 3P Sup. Electric Pole Repair P6 Practice 3:30pm	15 P6 Practice 3:30pm	16 Mustang Pract 5:30p	17 Mustang Pract 5:30p	18 P6 Practice 3:30pm	19 Impact Sports Combine 12-3 P6 Prep Game 5p/7p
20 Adult Gm 10a/1p	21 P&R Black Out - 3P Mustang Pract 5:30p	22 SBR 5:30/8p	23 P6 Practice 3:30pm	24 Mustang Pract 5:30p	25 P6 Tourney Memorial Day (5 & 7:3pm)	26 P6 Tourney Memorial Day (All Day)
27 P6 Tourney Memorial Day (All Day)	28 P6 Tourney MD (9 & 11:3a) Mustang Varsity 4p/6:15p Memorial Day	29 P&R Black Out - 3P SBR 5:30/8p	30 P6 NCBLA 5:30p	31 P6 Practice 3:30pm Mustang Pract 6:30p		

Pioneer Park Field Schedule - June 2012

Sunday	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday
					1 P6 Tourney Bob Nab (5 & 7:3pm)	2 P6 Tourney Bob Nab (All Day)
3 Adult Gm 1p Mustang Pract 5p	4 P6 Tourney Bob Nab (9a/11:30a) MU NCBLB 3:3/5:3p	5 P&R Black Out - 3P SBR 5:30/8p	6 Grizz Game 6:35p	7 Impact Sports Camp 9-2 P6 NCBLB 3:3/5:3p	8 Grizz Game 6:35p	9 SBR 12/2:30p Mustang Pract 5:30p
10 Adult Gm 9a/12p Grizz Game 4p	11 P&R Black Out - 3P	12 Impact Sports Camp 9-2 SBR 5:30/8p	13 Grizz Game 6:35p	14 P6 NCBLB 5:30p	15 Grizz Game 6:35p	16 SBR 12/2:30p Grizz Game 6:35p
17 Father's Day	18 P&R Black Out - 3P SBR 5:30/8p	19 MU NCBLB 12/2:3p Grizz Game 6:35p	20 P6NCBLB 3:3 Grizz Game 6:35p	21	22 P6 Tourney Prep (All Day)	23 Mustang Varsity 1p/3:15p Grizz Game 6:35p
24 Mustang Varsity 1p/3:15p Grizz Game 6:35p	25 P&R Black Out - 3P SBR 5:30/8p	26 Grizz Game 6:35p	27 P6 NCBLA 5:30p	28 SBR 5:30/8p	29 P6 Practice 6a-9a Grizz Game 6:35p	30 Grizz Mini Tourney (12p/6:30p)

Pioneer Park Field Schedule - July 2012

Sunday	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday
1 Grizz Mini Tourney (12p/6:30p)	2 P&R Black Out - 3P P6 NCBL 3 :3/5 :3p	3 SBR 5:30/8p	4 P6 NCBLB 5:3p Independence Day	5 P6 Tourney Hawks (All Day)	6 P6 Tourney Hawks (5 & 7:30pm)	7 SBR 12/2:30p Grizz Game 6:35p
8 P6 Tourney Hawks (10 & 12:30p) Grizz Game 6:35p	9 P&R Black Out - 3P Grizz Game 6:35p	10 P6 NCBLA 12/2:30p Grizz Game 6:35p	11 Mustang Pract 10a SBR 5:30/8p (Tourn)	12 Grizz Game 6:35p	13	14 SBR 12/2:30p (Tourn) Grizz Game 6:35p
15 Adult Gm 9a/12:3p Grizz Game 4p	16 P&R Black Out - 3P Grizz Game 6:35p	17 Grizz Game 6:35p	18 Mustang Try Outs 5p-9:3p Mustang Pract 6p	19 Mustang Pract 10a SBR 5:30/8p (Tourn)	20	21 Grizz Game 6:35p
22 P6 Tourney Mickey Powers 12p Mustang Try Outs 5p-9p	23 P&R Black Out - 3P Mustang Pract 5:45p	24 Grizz Game 6:35p	25	26	27	28
29 Adult Gm 9a/12:3p Flight 5 SF 5p	30 P&R Black Out - 3P	31 SBR 5:30 (Tourn)				

Pioneer Park Field Schedule - August 2012

Sunday	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday
			1	2 SBR 5:30/8p (Tourn)	3 CYBL 5:30/8p (Tourn)	4 CYBL 12p/2p (Tourn) CYBL 5p/7p (Tourn)
5	6 P&R Black Out - 3P	7	8	9	10	11
12	13 P&R Black Out - 3P	14	15	16	17	18
19 Adult Gm 9a/12:3p	20 P&R Black Out - 3P	21 Mustang Pract 5:30p	22 Mustang Pract 5:30p	23	24	25
26	27 P&R Black Out - 3P Mustang Pract 5:30p	28 Mustang Pract 5:30p	29 P6 Practice 4pm	30 Mustang Pract 5:30p	31	

Pioneer Park Field Schedule - September 2012

Sunday	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday
						1
2	3 P&R Black Out - 3P Labor Day	4 P6 Practice 4pm	5	6 P6 Practice 4pm	7 P6 Tourney 6:30pm	8 P6 Tourney (All Day)
9 P6 Tourney (All Day) Adult Gm 4p/6:3p	10 P&R Black Out - 3P	11 Mustang Pract 5:30p	12 P6 Practice 4pm	13	14	15 Mustang Pract 9a
16	17 P&R Black Out - 3P	18 Mustang Pract 5:30p	19 P6 Game 5pm	20 P6 Varsity Game 4pm	21	22 Mustang Varsity Gms 11a/1:30p
23	24 P&R Black Out - 3P	25 Mustang Pract 5:30p	26 P6 Game 5pm	27 Mustang Pract 5:30p	28	29 Mustang Pract 9a
30 Adult Gm 10a						

Pioneer Park Field Schedule - October 2012

Sunday	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday
	1 P&R Black Out - 3P	2 P6 Practice 4pm	3	4 P6 Practice 4pm	5	6
7	8 P&R Black Out - 3P Columbus Day	9 Mustang Pract 5:30p	10 P6 Practice 4pm	11 Mustang Pract 5:30p	12	13 Adult TOs 2p-4p
14	15 P&R Black Out - 3P	16	17	18	19	20
21	22 P&R Black Out - 3P	23	24	25	26	27
28	29 P&R Black Out - 3P	30	31 Halloween			

PROFESSIONAL SERVICES AGREEMENT

RFP-11-13 PIONEER PARK CONCESSION OPERATION

This Agreement is made this _____ day of _____, 20____ by and between the City of Cheyenne ("CITY") of the City of Cheyenne, Wyoming ("CITY"), and _____ ("FIRM").

WITNESSETH

WHEREAS, the CITY manages, operates, maintains and controls the Parks & Recreation Department facilities, including the Pioneer Park Baseball Field Concession and Restroom Facility.

WHEREAS, the CITY is in need of services to provide concessions at the Pioneer Park Field Concession and Restroom Facility.

WHEREAS, the FIRM is qualified to provide the concession services desired by the CITY and has submitted a proposal dated _____ for the above desired work, a copy of which is attached hereto as "Exhibit A" and incorporated by this reference;

WHEREAS, the FIRM also agrees to provide services and information to the CITY necessary to complete the work described in the Request For Proposals dated _____, a copy of which is attached hereto as "Exhibit B" and incorporated by this reference; and

WHEREAS, the CITY desires to employ the FIRM under the terms and conditions hereinafter set forth.

NOW, THEREFORE, in consideration of the mutual promises and covenants herein contained, it is agreed by and between the CITY and the FIRM as follows:

1. SCOPE OF SERVICES:

a. The FIRM agrees to provide professional services for the CITY as set forth in "Exhibit A" and "Exhibit B" attached hereto and incorporated herein by this reference.

b. The CITY may order major changes in the scope or character of work, either decreasing or increasing the amount of the FIRM'S services. In the event that such changes are ordered, the FIRM shall be entitled to additional compensation for additional work performed. Additional compensation for major changes shall be determined in accordance with Paragraph 2 of this Contract, but in no event shall the CITY be liable for payment unless the amount of such additional compensation shall first have been agreed to in writing by the CITY. In the event that major changes are ordered pursuant to this Section, the schedule for progress and completion in Section 3 of this Contract and compensation in Section 2 shall be adjusted by negotiation between the FIRM and the CITY.

2. COMPENSATION:

a. The FIRM shall perform the services set forth in Exhibits "A" and "B." For the ability to provide these services the FIRM shall pay the City \$_____ per year, for the term of this contract. Such payment shall be made on or before October 31 of the current year. Failure to make such a payment may result in the loss of the ability to utilize the Pioneer Park Concession and Restroom Facility to provide concession services.

3. TERM AND EFFECTIVE DATE:

This Agreement shall commence on the date the last required signature is attached hereto and shall continue in full force and effect until _____ and any plans, drawings, specifications and documents are submitted to the CITY in accordance with "Exhibit A" and "B", unless this Agreement is earlier terminated pursuant to Sections 20 and 21 herein.

4. MODIFICATION:

Any changes, modifications, revisions or amendments to this Agreement which are ordered pursuant to Section 1 herein or which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.

5. INDEMNIFICATION / HOLD HARMLESS:

The FIRM agrees to indemnify, hold harmless and defend the CITY and the CITY from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the FIRM's breach of any term or provision of this Agreement; or (2)

any negligent or wrongful act, error or omission by the FIRM, or its employees or subcontractors in the performance of this Agreement. The FIRM acknowledges that it may incur a financial obligation to the CITY and the CITY pursuant to the terms of this paragraph.

6. GOVERNMENTAL IMMUNITY:

The CITY and the CITY and their officials and employees do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, *et seq*, and all other applicable laws, except to the extent necessary solely for the enforcement of the terms and conditions of this Agreement as between the parties. Further, the CITY and the CITY fully retain all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.

7. INSURANCE:

The FIRM shall provide the CITY with proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. The FIRM shall provide the CITY with proof of workers' compensation or employer's liability insurance coverage.

Additional Insurance Information

The FIRM shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of worker's compensation and shall provide the CITY with a copy of the endorsements.

The FIRM shall provide the CITY with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon the FIRM to immediately notify in writing the CITY of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, the FIRM shall provide the CITY with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The CITY's failure to request or review such policies, endorsements, or certificates shall not affect the CITY's rights or the FIRM's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

8. GOVERNING LAW, JURISDICTION and VENUE:

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

9. COMPLIANCE WITH LAWS:

The FIRM shall comply with all applicable federal, state and local laws, rules and regulations in the performance of this contract. The FIRM's attention is directed to the fact that all applicable Federal and State laws, municipal ordinances, and the rules and regulations of all authorities having jurisdiction over design and construction of the project shall apply to the Agreement throughout, and they will be deemed to be included in the Agreement the same as though herein written out in full. Other Laws and Regulations apply which are not included herein, and are within the FIRM's duty and responsibility for compliance therewith.

10. NONDISCRIMINATION:

The FIRM shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. §27-9-105 et seq.), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101 et seq., and the Age Discrimination Act of 1975 and/or any properly promulgated rules and regulations thereto and the FIRM assures that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against in connection with the award and performance of this Agreement on the grounds of age, sex, race, creed, color, national origin, ancestry, religion, pregnancy or qualifying disability. The FIRM further assures that it will include the language of this paragraph in all agreements associated or connected in any way with this Agreement and the work thereunder. If the FIRM, its employees or subcontractors are found in violation of these requirements, this Agreement may be terminated. The FIRM shall be responsible for all such non-compliance and shall defend, hold harmless and indemnify the CITY therefrom.

11. ALCOHOL AND CONTROLLED SUBSTANCE POLICY:

In compliance with the Drug-Free Workplace Act of November 1988, the CITY has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by CITY employees. All parties under contract with the CITY, including the FIRM and its employees and subcontractors, are required to comply with the provisions of the CITY'S Alcohol and Controlled Substance Policy for drug and/or alcohol usage on CITY property or other sites occupied by the FIRM while performing duties and responsibilities of this contract. It is the responsibility of the FIRM to familiarize itself with the requirements of this policy and to inform all its employees and subcontractors of those requirements and to insure their compliance therewith. If the FIRM, its employees or subcontractors are found to be in violation of this policy, this contract may be terminated.

12. INDEPENDENT CONTRACTOR:

At all times during the term of this Agreement, the FIRM shall be considered an independent contractor. Neither the FIRM nor any one employed by it shall represent, act, purport to act or be deemed to be the agent, representative, employee or servant of the CITY.

13. CONFIDENTIALITY:

To the extent allowed by law, the CITY and the FIRM shall treat as confidential and not disclose to others information (including technical information, experience or data) regarding either party's plans, programs, plants, processes, products, costs, equipment, operations, or customers which come within the knowledge of the parties, without in each instance securing the prior written consent of the other party, unless such disclosure is required by law or legal process. However, nothing shall prevent either the FIRM or the CITY from disclosing to others or using in any manner information which either party can show (a) has been published or has become part of the public domain other than by acts of the FIRM or the CITY; (b) has been furnished or made known to the FIRM or the CITY by third parties without restrictions on its disclosure; or (c) was in either party's possession prior to the disclosure thereof by the CITY or the FIRM to each other. Neither the FIRM nor the CITY shall be restricted from releasing information in response to a subpoena, court order, or legal process, but, in the event such disclosure becomes necessary, the disclosing party shall notify the other party of the demand for information at least seven (7) days prior to disclosing such information so that the other party may take any and all steps provided by law to prevent the release of such information.

14. FIRM'S RESPONSIBILITIES:

The FIRM shall be responsible for all terms and conditions as set forth in this Agreement and the professional quality, technical accuracy, and timely completion of all services as set forth in Exhibits A and B and all changes in the scope or character of the work made pursuant to Sections 1 and/or 4 herein. The FIRM shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies. The FIRM shall perform all work in a professional manner in conformance with industry standards. The Firm shall maintain a diary or log book, recording hours on the job site, weather conditions, data relative to questions of extras or deductions, list of visiting officials and representatives of manufactures, fabricators, suppliers and distributors, daily activities, decisions, observations in general, and record detailed results and procedures of tests conducted.

15. NOTICES:

Any notice, correspondence or billing required to be given by the terms of this Agreement shall be delivered by hand, or delivered by mail, postage prepaid, to the addresses of the respective parties stated below:

CITY: Todd Feezer, Assistant Director
CITY of Cheyenne, Parks & Recreation Department
2101 O'Neil Avenue, Room 302
Cheyenne, WY 82001

FIRM: _____

16. INTELLECTUAL PROPERTY AND WORK PRODUCT

a. All work (preliminary, draft, and final) performed by the FIRM under this Agreement is the property of the CITY. The CITY will own any and all data, documents, working papers, computer programs, photographs, and other material produced by the FIRM pursuant to this Agreement, and the FIRM hereby assigns and transfers to the CITY any and all intellectual property rights for such materials. The FIRM will provide the CITY with copies of all such materials including, without limitation, any research memoranda prepared under this Agreement. Under no circumstances, including pending disputes between the CITY and the FIRM, will the FIRM fail to deliver possession of said documents and materials to the CITY upon demand.

b. The FIRM agrees to indemnify, pay the defense costs of, and hold the CITY harmless from any and all claims, demands, costs, liabilities, losses, expenses and damages (including attorneys' fees, costs, and expert witnesses' fees) arising out of or in connection with this Agreement that sound in an intellectual property claim (including but not limited to patent, copyright, trademark, trade name, or trade secret infringement).

c. This Section specifically survives the expiration or termination of this Agreement.

17. CONFLICT OF INTEREST:

In entering this Agreement, the FIRM covenants that it presently has no interest, and shall not acquire any interest, direct or indirect, financial or otherwise, which would conflict in any manner or degree with performance of the services hereunder. In addition, the FIRM covenants that in the performance of this contract, no subcontractor or person having such an interest shall be employed. The FIRM certifies that no one who has or will have any financial interest under this contract is an officer or employee of the CITY.

18. ACCEPTANCE NOT WAIVER:

The CITY'S approval of drawings, plans, specifications, reports, and incidental work or materials furnished hereunder shall not in any way relieve the FIRM from responsibility for the technical accuracy of the work. The CITY'S approval or acceptance of, or payment for, any services shall not be construed to operate as a waiver of any of the CITY'S rights under this Agreement or any of its legal rights under statute and common law arising out of the performance of this Agreement.

19. DEFAULT:

Each and every term and condition herein shall be deemed a material element of the Agreement. In the event either party shall fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

20. REMEDIES:

a. In the event a party declares the other party in default hereof, said party declaring default shall notify the defaulting party in writing and such defaulting party shall be allowed a period of fifteen (15) days to cure said default. In the event that the default remains uncorrected, the party not in default may elect to: (a) terminate the Agreement and seek damages; (b) treat the Agreement as continuing and require specific performance; or (c) avail itself of any other remedy at law or equity.

b. In the event the FIRM fails to strictly perform in accordance with this Agreement, the CITY may elect to make good such deficiencies and charge the FIRM therefore.

21. TERMINATION:

The CITY may, by written notice to the FIRM, terminate this Agreement in whole or in part by giving the FIRM fifteen (15) days written notice. Upon receipt of such notice, the FIRM shall:

a. Discontinue all services affected (unless the notice directs otherwise); and

b. Deliver to the CITY representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, accumulated by the FIRM in performing this Agreement, whether completed or in process. In event of termination, the CITY will pay the FIRM for accepted work done as of the date of termination.

22. WAIVER:

The waiver by either party of any term, condition or covenant, or breach of any term, condition or covenant, shall not constitute a waiver of any other term, condition or covenant, or breach thereof.

23. SEVERABILITY:

If any provision, section, subsection, sentence, clause, or phrase of this Agreement is invalidated by any court of competent jurisdiction, such holding shall not affect the validity of the remainder of this Agreement, which shall continue in full force and affect.

24. SUCCESSORS AND ASSIGNS:

All the terms, conditions, and provisions herein shall inure to the benefit of and be binding upon the parties hereto and their respective successors and assigns.

25. ASSIGNMENT:

Neither party shall assign this Agreement without prior written consent of both parties. Any delegation or assignment shall not operate to relieve either party of its responsibilities hereunder. However, nothing in this Agreement shall prohibit the FIRM from subcontracting to a qualified subcontractor.

26. THIRD PARTY RIGHTS:

The Parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement, and shall inure solely to the benefit of the parties to this Agreement. The parties to this Agreement intend and expressly agree that only the parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this Agreement, or to bring action for breach of this Agreement. This paragraph is not intended nor shall it be construed to waive any of the parties' immunities.

27. ENTIRE AGREEMENT OF THE PARTIES:

This Agreement, to include Exhibits A and B, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

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IN WITNESS WHEREOF, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

The effective date of this Agreement is the date of the last signature affixed to this page.

CITY OF CHEYENNE, WYOMING

BY:

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

Date: _____

FIRM

BY: _____

Title: _____

Date: _____

Address: _____
